IN THE NATIONAL COMPANY LAW TRIBUNAL, SINGLE BENCH, CHENNAI

CA/143/CAA/CB/2018
&
CA/144/CAA/CB/2018

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Arrangement (Demerger)

Between

M/s. Multi Vista Global Private Limited
... Demerged Company

And

M/s. Nellichery Land & Properties Private Limited
... Resulting Company

Order delivered on 20th August, 2018

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s) : Mr. T.K.Bhaskar,
Mr. Srinath Sridevan &
Mr. K.Harishankar, Counsels.

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL):

1. Under consideration is a joint Application Nos. CA/143 & 144/CAA/CB/2018 filed under Sections 230 to 232 of the Companies Act, 2013. Since both the Applications are with regard to the single Scheme of

Arrangement (Demerger), both of them are taken up together to pass a Common Order.

2. M/s. Multi Vista Global Private Limited: -

i. In relation to the Demerged Company viz., M/s. Multi Vista Global Private Limited, there are 19 equity shareholders. The list of shareholders is placed at page 100 of the typed set filed with the Application. The consent affidavits given by the equity shareholders are placed at pages 101 to 161 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting.

In the light of the Affidavits placed on record, the requirement under law has been fulfilled. Therefore, the meeting of the equity shareholders of the Demerged Company is dispensed with.

ii) The Demerged Company has one (1) Secured Creditor. The certificate of the Chartered Accountant to the effect is placed at page 178 of the typed set filed with

the Application. The consent Affidavit given by the Secured Creditor is placed at page 179 to 180 of the typed set fled with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Secured Creditor.

Therefore, the meeting of the Secured Creditor of the Demerged Company is allowed to be dispensed with under Sub-section (9) of Section 230 of the Companies Act, 2013.

iii. The Demerged Company has 582 Unsecured Creditors. The certificate of the Chartered Accountant to the effect and the list of unsecured creditors is placed at page 163 of the typed set filed with the Application. The list of Unsecured Creditors is placed at pages 164 to 175.

iv. The Applicants prayed to fix a date for convening and conducting the meeting of the Unsecured Creditors of the Demerged Company and to appoint a Chairman for the said meeting. Therefore, the meeting

of the Unsecured Creditors is allowed to be conducted on 28th September 2018 at 11.30 AM at Multi Vista Global Private Limited, Rajam Towers, III Floor, 45, KB Dasan Salai, Teynampet, Chennai – 600 018.

Mr. Mahesh Jayaraman, (Director), alternatively, Mr. Deepak Subramanian (Managing Director) of the Company, has been appointed as the Chairman of the meeting. The quorum shall be 10 Unsecured Creditors either in person or proxy. In case there is no quorum at the designated time of the meeting, then the meeting shall be adjourned by half an hour, and thereafter, the Unsecured Creditors present for voting shall be deemed to constitute the quorum. The voting by the proxy shall be permitted provided a proxy in the prescribed form duly signed by the person entitled to attend and vote at the meeting is filed with the Company at its Registered Office not later than 48 hours before the meeting. Notice for the meeting shall be sent by the Chairman of the meeting by Registered Post or speed post or Courier or E-mail or hand delivery as per the last known addresses of the Unsecured Creditors at least one month before the

date fixed for the meeting. The person who receives the notice within one month from the date of receipt of notice can vote in the meeting either in person or through proxy or the mode mentioned in the notice of the meeting to the adoption of the Scheme.

The Chairman is directed to ensure the availability of all the necessary facilities for the purpose of voting in the meeting so that the proceedings of the meeting may take place in a just, free and fair manner. The Chairman of the meeting is at liberty to fix his remuneration as per the practice in vogue and the Company shall pay the same to him. The Chairman shall file the report of the meeting to this Bench within one week from the date of the meeting.

3. M/s. Nellichery Land & Properties Private Limited: -

i. In relation to the Resulting Company viz., M/s. Nellichery Land & Properties Private Limited, there are five (5) equity shareholders. The list of shareholders is placed at page 37 of the typed set filed with the Application. The consent affidavits given by the equity

shareholders are placed at pages 38 to 47 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting.

In the light of the Affidavits placed on record, the requirement under law has been fulfilled. Therefore, the meeting of the equity shareholders of the Resulting Company is dispensed with.

ii) The Resulting Company has no Secured Creditor or Unsecured Creditor. The certificate of the Chartered Accountant to the effect is placed at page 48 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the Regional Director, Ministry of Corporate Affairs, RoC concerned and Income Tax Authority Authorities including the Assessing Officer of the concerned IT Circles, in relation to the Applicant Companies separately. Since the Applicants are private limited companies, there is no requirement to issue notice to

SEBI, RBI and/or other Stock Exchanges, CCI or other sectoral regulators. In case any authority to whom the notices are issued is/are desirous of making any objection/representation, they may do so within the period of 30 days from the date of the receipt of the notice. In case no representation is received within the stipulated period of 30 days by this Bench, it shall be presumed that the authorities have no objection/representation to make on the proposed Scheme of Arrangement (Demerger).

5. The Applicant Companies are directed to issue private notice separately to the said authorities/regulators by way of speed post/hand delivery separately. The proof of sending and effecting the service of notices upon them with the newspaper publication be submitted along with an affidavit, at the time of filing Company Petition(s).

6. The Applicant Companies are directed to effect publication separately in the newspapers one in English "Business Line" (All India Edition) and another in

vernacular "Makkal Kural" (Chennai Edition) having wide circulation in the State of Tamilnadu, having not less than 30 days before filing the Company Petition(s). The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice boards at the Registered Office of the respective Companies. The Registry is also directed to display the notice on the notice board of this Bench.

7. Accordingly, the Applications are **allowed**. After one week from the date of submission of the reports by the Chairman, the Applicant Companies may present the Company Petition(s). Accordingly the Applications stand **disposed of**.

[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

P.ATHISTAMANI/MS